

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 7550 of 2019

Applicant :- Bablu @ Ramakant

Opposite Party :- Jhabbu Lal, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd

Counsel for Applicant :- Girraj Singh

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant.

By order dated 8.8.2018 passed in Writ C No.25745 of 2018 filed by the applicant, the Court directed as under:

"The petitioner is raising disputes with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005 as it relates to the disputed questions of fact.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance, his application may be considered in accordance with law.

The Writ Petition is accordingly disposed of."

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite party but the opposite party has wilfully not complied with the order and, thus, has committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of the Court within three weeks from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a recorded thereof.

The opposite party shall comply with the directions of the writ court and intimate him of the order through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite party within the stipulated time as aforementioned.

Order Date :- 16.11.2019
RKP